

SUPREME COURT OF THE STATE OF NEW
YORK COUNTY OF KINGS

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Gregory Delaine,

Plaintiff,

---against---

THE CITY OF NEW YORK, P.O. Lambert
#14548, P.O. Martinez # 10299, and Sergeant
Miller 3606 and P.O. JOHN DOES #1-10,

Defendants.

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Index No.:

Date Purchased:

SUMMONS

Plaintiff
designates Kings
County as place
of trial

Basis of Venue:
Plaintiff's
Residence

Plaintiff resides
at:

County of Kings

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, NY
January 6, 2019

RAWLINS LAW, PLLC

Gary N. Rawlins

Gary Rawlins, Esq.
Attorney for Plaintiff

Gregory Delaine
777 Westchester Ave, Suite 101
White Plains, NY 10604
Tel: (212) 926-0050
Fax: (347) 332-1592

TO:

CITY OF NEW YORK
Corporation Counsel
New York City Law Department
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

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Gregory Delaine,

**VERIFIED
COMPLAINT**

Plaintiff,

against

THE CITY OF NEW YORK, P.O. Lambert #14548,
P.O. Martinez # 10299, and Sergeant Miller 3606 and
P.O. JOHN DOES #1-10,

Defendants.

-----X

Plaintiff, by his attorney, **GARY N. RAWLINS**, as and for his Summons and
Verified Complaint, respectfully alleges, upon information and belief that:

1. The Plaintiff, **Gregory Delaine**, at all times herein mentioned was and still is a
resident of the County of Kings and the State of New York.
2. At all times mentioned herein, Defendants **THE CITY OF NEW YORK, P.O.
Lambert #14548, P.O. Martinez # 10299, and Sergeant Miller 3606 AND JOHN
DOES #1-10** and others not presently known to Plaintiff were and still are residents of
the County of Kings and the State of New York.
3. At all times herein mentioned, Defendant **THE CITY OF NEW YORK**
("NYC"), was and still is a municipal corporation, created, organized and existing under
and by virtue of the laws of the State of New York.

4. Prior to the commencement of this action, a notice of claim in writing was served on behalf of plaintiff upon **THE CITY OF NEW YORK** in accordance with Section 50-e of the General Municipal Law.

5. Within ninety days of (90), a notice of claim in writing was served on behalf of Plaintiff **Gregory Delaine** upon **THE CITY OF NEW YORK**, in accordance with Section 50-e of the General Municipal Law.

6. Prior to the commencement of this action, notice of the intention of Plaintiff **Gregory Delaine** to commence an action, unless the claim presented was adjusted within the prescribed time as set forth by the New York City Charter to adjust such claims, was served on behalf of Plaintiff upon Although more than thirty (30) days have elapsed since service of such notice of claim, Defendants neglected and have refused to pay said claim or adjust same.

7. A hearing pursuant to General Municipal Law 50-h was held on February 16, 2018.

8. This action is commenced within one (1) year and ninety (90) days from the date of the incident October 6, 2017.

9. At all relevant times, Defendants **P.O. Lambert #14548, P.O. Martinez # 10299, and Sergeant Miller 3606 and JOHN DOES #1-10** were employees of Defendants **THE CITY OF NEW YORK** and were acting for, upon and in the course of and in the furtherance of the business of their employers and within the scope of their employment.

10. The individual Defendants **THE CITY OF NEW YORK, P.O. Lambert #14548, P.O. Martinez # 10299, and Sergeant Miller 3606 and JOHN DOES #1-10** were acting pursuant to the authority conferred upon them.

11. At all times herein mentioned, Defendants **THE CITY OF NEW YORK, P.O. Lambert #14548, P.O. Martinez # 10299, and Sergeant Miller 3606 and JOHN DOES #1-10** stood in such a relationship with each other in providing law enforcement services as to make each liable for the acts and omissions of the others.

12. Defendants **THE CITY OF NEW YORK** are vicariously liable for the acts of Defendants **P.O. Lambert #14548, P.O. Martinez # 10299, and Sergeant Miller 3606 and JOHN DOES #1-10**.

AS AND FOR THE FIRST CAUSE OF ACTION FOR ILLEGAL SEARCH

AND SIEZURE AND FALSE ARREST AS AGAINST ALL DEFENDANTS

13. Plaintiff **Gregory Delaine** repeats and realleges each and every allegation contained in paragraphs 1 through 12 with full force and effect as if each were more fully set forth herein.

14. Plaintiff **Gregory Delaine** sues all Defendants in their individual capacities.

15. On and October 6, 2017 Plaintiff **Gregory Delaine** was wrongfully, unlawfully and unjustifiably arrested, searched detained and deprived of his liberty against his will, and was imprisoned by defendants, their officers, agents, servants, employees, agencies and/or departments and/or at the instigation of those departments.

16. The wrongful, unjustifiable and unlawful apprehension, arrest, detention, search and imprisonment were all carried out without a warrant and without probable cause.

17. At all relevant times, defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff **Gregory Delaine** in his own apartment and forcing him to sign a consent to search.

18. On or about October 6, 2017 no crime occurred. P.O. Lambert #14548, P.O. Martinez # 10299, and Sergeant Miller 3606 accused Mr. Delaine and his friend of a crime. At the time Mr. Delaine was home.

19. Defendants, their officers, agents, servant and/or employees were responsible for Plaintiff **Gregory Delaine's** arrest, detention and imprisonment during this period of time.

20. Throughout Plaintiff **Gregory Delaine** imprisonment, Defendants, and their officers, agents, servants, and employees refused to give Plaintiff an opportunity to establish his innocence and refused to review the exculpatory information that was provided.

21. Defendants intended to and did in fact confine Plaintiff **Gregory Delaine** and physically prevented him from leaving their custody and kept him under the supervision without access to his freedom, family and home.

22. Plaintiff **Gregory Delaine** was conscious of his unlawful arrest, detention and imprisonment and did not consent to the confinement.

23. At all relevant times, the unlawful, wrongful and false arrest and imprisonment of Plaintiff **Gregory Delaine** was without right or privilege, and unjustified and without probable or reasonable cause.

24. At no time did Defendants or their officers, agents, servants, employees, agencies and/or departments have a warrant or other legal process for the arrest, detention or imprisonment of Plaintiff **Gregory Delaine**.

25. On or about the time of Plaintiff **Gregory Delaine** unlawfully arrest, the same officers returned to his apartment and forced him to sign consent to search documents and would not leave until he did so.

26. At all relevant times, the false, unlawful, and improper arrest and imprisonment of the wheelchair bound Plaintiff **Gregory Delaine** was by force and against his will.

27. All of the foregoing occurred without fault or provocation on the part of Plaintiff **Gregory Delaine**.

28. As consequences of Defendants' wrongful actions, negligent behavior, and violation of New York State and common laws, Plaintiff **Gregory Delaine**:

- a) was imprisoned in his own apartment;
- b) was subjected to great fear, terror, personal humiliation, degradation, ridicule and disgrace;
- c) was subjected to great physical, mental, and emotional distress, suffering and harm;
- d) was discredited in the minds of many members of the community, having his personal reputation was deprived of his freedom;
- e) and character injured;
- f) was prevented from attending to his necessary affairs in business during the period of his detention;

- g) was permanently impaired as to his earning ability;
- h) and continues to suffer pain and mental and emotional distress as a result of the aforesaid unlawful conduct of Defendants, their agents, employees, and servants.

29. Defendants acted with a knowing, willful, wanton, grossly reckless, unlawful, unreasonable, unconscionable and flagrant disregard of Plaintiff's rights, privileges, welfare and well-being, and were guilty of egregious and gross misconduct toward him.

30. By reason of the foregoing, Plaintiff **Gregory Delaine** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION FOR FALSE ARREST AS
AGAINST ALL DEFENDANTS**

31. Plaintiff **Gregory Delaine** repeats and re-alleges each and every allegation contained in paragraphs 1 through 30 with full force and effect as if each were more fully set forth herein.

32. On or about October 6, 2017 Defendants P.O. Lambert #14548, P.O. Martinez # 10299, and Sergeant Miller 3606, entered a private residence and arrested Mr. Delaine. They jointly acted to create false police reports and obtained forced signatures from the property owner to support the false arrest. Plaintiff **Gregory Delaine** unlawful detention and arrest arose from the taking of Plaintiff into custody to be held to answer for a crime.

33. The aforementioned arrest and subsequent detention were without probable cause or any justification and were further based upon Defendants' false statements, falsified reports, falsified documents, falsified evidence and or perjured testimony.

34. By reason of Defendants' actions, Plaintiff **Gregory Delaine** suffered the afore-stated personal injury, was deprived of his liberty and was otherwise greatly injured.

35. By reason of the foregoing, Plaintiff **Gregory Delaine** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FAILURE TO INTERVENE/
DELIBERATE INDIFFERENCE TO PREVENT THE VIOLATION OF
PLAINTIFF'S CIVIL RIGHTS AS AGAINST ALL DEFENDANTS**

36. Plaintiff **Gregory Delaine** repeats and re-alleges each and every allegation contained in paragraphs 1 through 36 with full force and effect as if each were more fully set forth herein.

37. As a result of the above actions, Defendants **THE CITY OF NEW YORK** by and through its agents, servants and /or employees, including P.O. Lambert #14548, P.O. Martinez # 10299, and Sergeant Miller 3606 and **OFFICERS**, failed to intervene to prevent or end the unlawful conduct inflicted upon Plaintiff **Gregory Delaine** by defendant **OFFICERS**.

38. As a result of the foregoing, Defendants **THE CITY OF NEW YORK**, individually and and/or vicariously by and through their agents servants, and/or employees, and, displayed a deliberate indifference to Plaintiff **Gregory Delaine** rights to be free from unreasonable searches and seizures and excessive use of force.

39. As a result of the foregoing, Defendants **THE CITY OF NEW YORK** individually and/or vicariously by and through its agents servants, and/or employees, including, **P.O. Lambert #14548, P.O. Martinez # 10299, and Sergeant Miller 3606** acted intentionally, willfully, maliciously, with reckless disregard for and deliberate indifference to Plaintiff's rights and physical well being.

40. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S RIGHT AGAINST UNREASONABLE SEARCH AND SEIZURE
PURSUANT TO NEW YORK STATE CONSTITUTION ARTICLE 1 SECTION
12 AGAINST ALL DEFENDANTS**

41. Plaintiff **Gregory Delaine** repeats and re-alleges each and every allegation contained in paragraphs 1 through 41 with full force and effect as if each were more fully set forth herein.

42. Defendants, and each of them in their individual and official capacities, had a duty under the New York State Constitution Article 1 Section 12 to prevent and cease the wrongful detainment, false arrest, assault, false imprisonment, malicious and false charging and prosecuting, and other wrongful acts that were committed against Plaintiff **Gregory Delaine**.

43. In actively inflicting and failing to prevent the above-stated abuses incurred by Plaintiff **Gregory Delaine** all of Defendants acted unreasonably, recklessly, and negligently in failing to exercise the slightest amount of due care to secure and protect

the civil and constitutional rights of Plaintiff against detained custody, false arrest and arrest without other due process violations. The New York State Constitution guarantees said rights to Plaintiff.

44. The breach of duty under the New York State Constitution by the Defendants, **P.O. Lambert #14548, P.O. Martinez # 10299, and Sergeant Miller 3606** was a direct and proximate cause of the afore stated harm suffered by Plaintiff **Gregory Delaine**.

45. By reason of the foregoing, Plaintiff **Gregory Delaine** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A FIFTH U.S.C. 1983 CAUSE OF ACTION FOR FALSE ARREST AND ILLEGAL SEARCH AND SEIZURE AS AGAINST ALL DEFENDANTS IN VIOLATION OF PLAINTIFF'S UNITED STATES CONSTITUTIONAL RIGHTS

46. Plaintiff **Gregory Delaine** repeats and re-alleges each and every allegation contained in the above paragraphs 1 through 46 with full force and effect as if each were more fully set forth herein.

47. Plaintiff **Gregory Delaine** sues all Defendants in their capacities.

48. The wrongful, unjustifiable and unlawful apprehension, arrest, detention and imprisonment were all carried out without a warrant or probable cause.

49. At all relevant times, Defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff **Gregory Delaine**.

50. As and for a MONELL CLAIM, prior to on or about October 6, 2017, the City of New York developed and maintained policies or customs exhibiting deliberate indifference to constitutional rights of persons in New York, which caused the violation

of Mr. Delaines's rights. It was the policy and/or custom of the City of New York to inadequately and improperly investigate citizen complaints of police misconduct, and acts of misconduct were instead tolerated by the City of New York. It was the policy and/or custom of the City of New York to inadequately supervise and train its police officers, including the defendant officers, thereby failing to adequately discourage further constitutional violations on the part of its police officers. The City did not require appropriate in-service training or re-training of officers and employees who were known to have engaged in police misconduct. As a result of the above described policies and customs, police officers of the City of New York, including the defendant officers, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated. The above described policies and customs demonstrated a deliberate indifference on the part of the policymakers of the City of New York to the constitutional rights of persons within the City, and were the cause of the violations of the Plaintiff's, **Gregory Delaine**, rights alleged herein. Respondent's knew or should have known that police officers were not being truthful and/or withholding exculpatory information.

51. On or about October 6, 2017 and August 28, 2017, Defendants **P.O. Lambert #14548, P.O. Martinez # 10299, and Sergeant Miller 3606** recklessly and maliciously procured Plaintiff's arrest, imprisonment, and instigated malicious prosecution against Plaintiff. The defendant commenced a criminal proceeding against the plaintiff, the criminal proceeding was terminated in favor of the plaintiff, the claim lacked probable cause, and the claim was brought out of actual malice.

52. Defendants played an active role in the prosecution, upon information and belief including but not limited to convincing each other and other police officers to participate in Plaintiff's prosecution; procuring false information to support their case; making false allegations; and otherwise acting with malice.

53. The charges against Plaintiff were not based upon probable cause, that is, the state of the facts known to the Defendants under the circumstances would not lead a reasonable person of ordinary caution and prudence to believe and/or entertain an honest suspicion that Plaintiff was guilty.

54. The Defendants had a duty to protect Plaintiff's constitutional rights and violated that duty.

55. The malicious prosecution caused serious injury to Plaintiff in the form of pain, suffering, shock, humiliation, embarrassment, physical injury, and deprivation of constitutional rights.

56. As a result of the malicious prosecution against him, Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

AS AND FOR A SIXTH CAUSE OF ACTION FOR NEGLIGENT HIRING, TRAINING, RETENTION, AND SUPERVISION AGAINST DEFENDANTS NYC

57. Plaintiff **Gregory Delaine** repeats and re-alleges each and every allegation contained in paragraphs 1 through 57 with full force and effect as if each were more fully set forth herein.

58. That at the time of the aforementioned false arrest, false imprisonment, defamation, and violations of Plaintiff **Gregory Delaine** civil rights, all of the

above-captioned Defendants were acting in the course and general scope of their employment duties and official duties pursuant to the authority given them by Defendants

THE CITY OF NEW YORK

59. Defendant **THE CITY OF NEW YORK** at all relevant times herein should have known or had reason or opportunity to know, that the agents, servants and/or employees named as defendants in this complaint were unfit for the employment for which they were hired, unfit for the official duties delegated to them and unfit for the law enforcement, investigatory, and prosecutorial responsibilities to which they were assigned.

60. That by hiring, retaining, employing, failing to supervise, failing to screen, failing to test, failing to evaluate, failing to monitor, failing to manage, failing to train and failing to investigate the aforementioned agents, servants and/or employees, Defendants **THE CITY OF NEW YORK**, negligently created and caused a situation where it was likely that said agents, servants and/or employees would, as a result of their work history, unfit character, malicious temperament, criminal propensity, inadequate training, inadequate management and inadequate supervision, unlawfully arrested, unlawfully imprisoned, unlawfully deprived innocent persons such as Plaintiff **Gregory Delaine** of their Constitutional rights under the New York State Constitution, intentionally, wrongfully and unjustifiably arrested, detained and deprived such person of his liberty against his will, and imprisoned such person without sufficient reasons or probable cause appearing therefore.

61. Defendant **THE CITY OF NEW YORK** knew or should have known in the exercise of due and reasonable care that the aforementioned agents, servants and/or employees were malicious, vicious, potentially dangerous, and negligent and performing perjurious, criminal and illegal acts during the course of their employment duties.

62. Defendant **THE CITY OF NEW YORK** was negligent in the hiring, employment, training, retention, management, supervision, screening, testing, evaluating, monitoring, and investigating of the aforementioned agents, servants and/or employees.

63. That by reason of and in consequence of said negligence and lack of reasonable care on the part of defendants **THE CITY OF NEW YORK** and their agents, servants and/or employees, Plaintiff **Gregory Delaine** suffered the afore-stated injuries.

64. Prior to October 6, 2017 the City of New York developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of persons in New York, which caused the violation of plaintiff's rights.

65. It was the policy and/or custom of the City of New York to inadequately and improperly investigate citizen complaints of police misconduct, and acts of misconduct were instead tolerated by the City of New York.

66. It was the policy and/or custom of the City or New York to inadequately supervise and train its police officers, including the defendant officers, thereby failing to adequately discourage further constitutional violations on the part of its police officers. The City did not require appropriate in-service training or re-training of officers who were known to have engaged in police misconduct.

67. As a result of the above described policies and customs, police officers of the City of New York, including the defendant officers, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

68. The above described policies and customs demonstrated a deliberate indifference on the part of policymakers of the City of New York to the constitutional rights of persons within the City, and were the cause of the violations of Plaintiff's rights alleged herein. Wherefore, the Plaintiff requests that this Court:

- a. Award compensatory damages to Plaintiff against the Defendants, jointly and severally;
- b. Award costs of this action to the Plaintiff;
- c. Award reasonable attorney's fees and costs to the Plaintiff
- d. Award such other and further relief, as this Court may deem appropriate.

69. By reason of the foregoing, Plaintiff **Gregory Delaine** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION
FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
AGAINST ALL DEFENDANTS

70. Plaintiff **Gregory Delaine** repeats and re-alleges each and every allegation contained in paragraphs 1 through 70 with full force and effect as if each were more fully set forth herein.

71. The Defendants, and each of them, acted outrageously for their above-stated roles in the wrongful stop, detainment, charging, failing to investigate, failure to adhere to law, rule and regulations known to them, failing to heed Plaintiff **Gregory Delaine** protestations, manhandling, false arrest, prolonged captivity, intimidation and public humiliation of Plaintiff.

72. Said emotional harm was exacerbated by the persistence of Defendants, by maintaining the false claims and criminal charges against the Plaintiff **Gregory Delaine** without any further investigation of the incident. Defendants knew or had reasons to know that the criminal charges against Plaintiff were false or without merit, yet that they detained and prosecuted Plaintiff with the intention of causing further harm and duress to the Plaintiff.

73. Defendants knew that their conduct would cause severe and extreme emotional harm to the Plaintiff **Gregory Delaine** and injury to his good name and reputation.

74. Said harm did in fact occur in this case, in that Plaintiff **Gregory Delaine** was debilitated to the point where he still suffers from episodes of anxiety, anger, loss of sleep, and other impingement of the emotional good health; to the extent that Plaintiff have had to seek support and counseling within the family.

75. By reason of the foregoing, Plaintiff **Gregory Delaine** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR AN EIGHTH CAUSE OF ACTION FOR PUNITIVE DAMAGES
AGAINST ALL DEFENDANTS

76. Plaintiff **Gregory Delaine** repeats and re-alleges each and every allegation contained in paragraphs 1 through 76 with full force and effect as if each were more fully set forth herein.

77. Defendants' acts were reckless, willful, wanton, malicious, oppressive, outrageous, outside the bounds of conduct tolerated in a civil society, without regard for Plaintiff **Gregory Delaine** well being, and were based on a lack of concern and ill-will towards Plaintiff.

78. Plaintiff **Gregory Delaine** therefore demands punitive damages in the amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff **Gregory Delaine** demands judgment against the defendants as follows:

- a. On the First Cause of Action against all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severally;
- b. On the Second Cause of Action against all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severally;
- c. On the Third Cause of Action against all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severally;

- d. On the Fourth Cause of Action against all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severally;
- e. On the Fifth Cause of Action against **THE CITY OF NEW YORK** all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severally;
- f. On the Sixth Cause of Action against all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severally;
- g. On the Seventh Cause of Action against all of the above captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severally;
- h. On the Eighth Cause of Action against all of the above captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severally;
- i. Together with costs and disbursements of this action and;
- j. Such other and further relief as to the Court may seem just and proper.

Dated: White Plains, NY
January 6 2019

RAWLINS LAW, PLLC
Gary N. Rawlins

Gary N. Rawlins, Esq.
Attorney for Plaintiff
Gregory Delaine
777 Westchester Ave,
Suite 101
White Plains, NY 10604
Tel: (212) 926-0050

To:

CITY OF NEW YORK

Corporation Counsel
New York City Law Department
100 Church Street
New York, New York 10007

ATTORNEY'S VERIFICATION

Gary N. Rawlins, an attorney admitted to practice in the Courts of the State, and attorney for Plaintiff states:

That your affirmant has read the foregoing instrument and knows the contents thereof; that the same is true to your affirmant's own knowledge except as to the matters which are stated therein to be alleged on information and belief, and as to those matters your affirmant believes them to be true. The source of your affirmant's information and belief is an investigation made with respect to the facts in this action.

That the reason this Verification is made by affirmant and not by the Plaintiff is because the Plaintiff does not reside within the county where I maintain my Office.

The undersigned affirms that the foregoing statement is true, under penalties of perjury.

Date: White Plains, NY
January 6, 2019

Respectfully Submitted,

Gary N. Rawlins

Gary N. Rawlins